*Chapter One*

# The Fetish of Fluency

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A sentence can become more certain without anyone learning anything new.

Imagine a witness who remembers water near the entrance to a building. She cannot remember whether she saw it on Tuesday evening or Wednesday afternoon. The accident occurred on Wednesday morning. Her uncertainty belongs to the evidence. It determines what her recollection can establish about the sequence of events.

A summary arrives: “The witness observed water near the entrance before the accident.” The building is real. The witness is real. The water appears in her account. Even the citation may lead to the correct page. Yet the summary has settled a question that the witness left open. The word “before” has done the work of an investigation that never occurred.

Now imagine that sentence travelling. It enters a chronology, then a memorandum, then an email explaining why a decision should be made. A second reader encounters a settled sequence. A third encounters a conclusion attributed to the file. Unless someone returns to the original account, repetition can make the inference harder to distinguish from evidence. Nobody has interviewed the witness again. The account has acquired authority through circulation. A human writer could make the same error. What concerns me about delegating this work to a language model is the ease with which a finished account can be produced and accepted before anyone has examined the transitions within it. The question is how an institution handles the gap between a statement that reads well and a statement it is entitled to act upon.

Suppose everyone involved understands that the model can be wrong. The first reader assumes the citation was checked. The second assumes the first reader took responsibility. The manager assumes the review process would have stopped a material error. Each person's confidence rests on work imagined to have happened elsewhere. The process can proceed without anyone believing the machine is infallible. Žižek's account of cynical ideology helps us approach this arrangement: awareness of a practice's contradictions can coexist with continued participation in it. His discussion of symbolic presupposition sharpens the difficulty: it exists "only insofar as subjects act as if it exists." A shared order can persist through such conduct, whatever people's private reservations. In the scene before us, the presupposition lives in the handoffs: each person acts as though the necessary inquiry has already occurred. Admitting the model's limitations can therefore leave its output in charge. The warning has been spoken; the sentence continues on its way.[1]

I call this the fetish of fluency: the authority produced by a chain of decisions appears to belong to the prose itself. The sentence seems trustworthy because it has the composure of something already examined. Its orderly surface conceals the choices on which trust in it would have to rest, including the choice to preserve the witness's doubt. The labor of establishing a claim has been displaced onto a quality of its presentation.

There is a particular convenience in this arrangement. The finished paragraph gives people something they can move onward. Its existence is visible; the inquiry it appears to conclude may be difficult to see. If an organization measures completion by the arrival of that paragraph, a conscientious objection interrupts something already counted as done. Nietzsche's image of worn coins, regarded as smooth metal once their stamp has been lost, helps us see what repeated use can conceal: a human valuation comes to look like the substance itself. His argument concerns the making of truths, not the checking of legal summaries. Here the danger is more specific. A statement can lose the visible marks of its qualification while retaining the authority accumulated in use.

The reviewer who restores the uncertainty can appear to be creating the problem.[2]

Walter Benjamin's description of an "absent-minded" examiner belongs to an account of film, distraction, and changing habits of perception. It suggests a question for the scene before us: what does it mean to occupy the position of examiner when the conditions for examination are missing? A reviewer given an answer, a deadline, and an approval button may possess responsibility without a workable opportunity to exercise it. We should therefore examine the conditions surrounding that button. Can the reviewer see the disputed passage? Can they stop the recommendation? Will someone answer the question they raise? If checking a claim requires reopening scattered files while approval takes a click, the process has made one action easier than the other. Calling the easier action a human decision does not tell us how much judgment it contains.[3]

## What the image remembers

In William Kentridge's charcoal animations, a drawing changes through repeated drawing, filming, and erasure. The erasure is imperfect. Earlier marks can survive as smudges, so the image retains visible traces of its making. We watch a present that has been worked over; what was there before continues to disturb what is there now. My earlier work on shadows and delay began with the possibility that such disturbances help us understand. A representation may become illuminating when it reveals the limits and conditions of its own appearance. The viewer is given something to notice about the act of seeing, including the distance between an image and what it invites us to recognize.

Kentridge makes this possibility explicit when he imagines reversing the familiar journey out of Plato's cave. Someone bewildered by the brightness of the world above might descend into the shadows to learn from them. The reversal changes the question we ask of an image. Alongside asking what an image

shows, we must ask what its way of showing reveals about the limits of our own knowledge.[4]

Return to the witness. Her hesitation is a mark that the summary can either carry or remove. A faithful account might say that she remembers water but cannot place the observation before or after the accident. That sentence is useful precisely because it preserves a limit. It tells the next reader where inquiry must continue. Removing the hesitation produces a cleaner chronology by making the evidence harder to understand.

The analogy with Kentridge has limits. A smudge is not an audit record, and a source link cannot recreate the experience of remembering. But the comparison directs attention toward something easily neglected: the history of a representation matters to its present use. If a statement changes from uncertain to settled, the grounds for that change should remain available to the person asked to rely on it.

There is no need to preserve every draft on the face of every sentence. A readable summary must select and compress. The distinction that matters is whether the compression changes what someone may reasonably conclude or do. A different adjective may leave the decision untouched. Losing the difference between Tuesday evening and Wednesday afternoon may transform it. The practical task is to keep consequential differences visible.

Nor can we escape interpretation by returning to an original document. The witness’s account is already a recollection, elicited through questions and preserved in a particular form. A transcript can be incomplete. A record can faithfully preserve a mistake. These possibilities make source criticism more necessary: they give us reasons to distinguish what a record says, whether it deserves belief, and what action it can support. The desire for an immaculate record promises a point at which inquiry can hand responsibility over to an object—the document, the score, the completed file. Yet the record was assembled by someone, for some purpose, within some boundary. Its omissions may include experiences that were never recorded at all. A system that makes

its sources visible must also leave room to question the adequacy of those sources.

## Who answers for the sentence

In *Athens, Still Remains*, Derrida describes a sentence that comes to him during a visit to Greece. He cannot simply claim it as his possession, yet he feels responsible for its safekeeping. His meditation concerns language, photography, mortality, and inheritance. I want to bring one difficulty from that meditation into a different setting: receiving language can place us under an obligation that authorship alone does not explain.[5]

A reviewer did not generate the machine's sentence. A manager may never have seen the prompt. An employee may inherit an assessment produced before they joined the organization. These differences matter when responsibility is assigned. They do not settle what each person owes to the claim once they use it to authorize a consequence. "I did not write it" answers a question about composition. The person affected by a decision may be asking who relied on it, who could have corrected it, or who will now respond. An organization needs an account of these responsibilities that survives the movement of language between people. Otherwise each handoff offers another opportunity for the claim to travel further than anyone's willingness to answer for it.

This is where the Reality Ledger enters my argument. Its governing proposal is that a qualification relevant to a decision remains an obligation until it is carried forward, resolved by identified evidence, or reflected in a restriction on the action. The obligation survives a change of format. A caveat cannot expire merely because a paragraph became a bullet point. In our example, the ledger would keep the witness's unresolved chronology attached to the claim that depends on it. A reviewer could preserve the uncertainty in the account. Further evidence might settle the sequence. Or the recommendation could be limited so that it does not rely on prior observation. Each response would account for the gap. Simply dropping the qualification

would leave the obligation unmet. Haverkamp's account of the past as a mortgage in Shakespeare offers a figure for this inheritance. In the setting before us, I would call it an epistemic mortgage: an inquiry still owed by whoever would make the claim grounds for action. Its downstream liability appears when someone else must reopen the neglected question or bear the consequences of treating it as settled. The debt compounds as a sentence travels: each unexamined handoff creates another commitment resting on the same unpaid inquiry.[6]

Its philosophical interest lies in where it directs attention. It asks us to follow a claim into the action it supports and to keep track of the conditions that permit that action. A general impression that a document is mostly accurate cannot settle whether its decisive premise is supported. Consider a memorandum that gets every name and date right except for the one sequence on which its recommendation depends. Counting correct details will tell us something about the memorandum. It will not repair the recommendation. A critical unresolved condition needs a response addressed to that condition. It cannot be compensated for by accuracy elsewhere.

The ledger must submit to the same scrutiny. Someone decides which qualifications matter and whose account enters the file. Someone designs the categories through which a disagreement becomes visible. An impeccably maintained record can still organize a narrow or mistaken view. A passed review should therefore remain open to challenge, especially by the person who bears the consequences. The moment the ledger becomes an unquestionable certificate of responsibility, it reproduces the problem it was meant to expose.

The interval between knowledge and a responsible decision remains. My thesis approached this interval through Derrida: even extensive knowledge cannot eliminate the need to answer for what one chooses. Procedures can require a reason, preserve an objection, and identify a person authorized to decide. Their value depends partly on whether they make that person's

judgment more accountable. Following the procedure cannot, by itself, exhaust what is owed to someone affected by it.[7]

## Who can afford to wait

The title *The Right to Hesitate* carries a danger. An institution can take all the time it wants while another person pays for the waiting. Anyone whose urgent request remains under review knows that delay has consequences of its own. A defense of hesitation must account for those consequences from the beginning.

Cavell's reading of *Hamlet* helps complicate the temptation to make delay a virtue. He begins with *Hamlet*'s effort to test the Ghost and Claudius, but places that effort beside the possibility that a demand for proof can become a refusal to acknowledge what is already difficult to deny. Applied to institutional judgment, this raises a question that a verification procedure cannot avoid: when does further inquiry help us answer, and when does it protect us from having to?[8]

Imagine that the water is still on the floor. We do not need to settle whether it was there on Tuesday before keeping people away from it now. Immediate protective action and continued inquiry can proceed together. Different actions depend on different claims. Treating all uncertainty as a reason to suspend every action would turn caution into a failure of judgment. A useful pause therefore requires someone to identify the question to be resolved, explain what would count as resolving it, and remain responsible for what happens while it is open. A temporary measure may reduce harm. A time limit may force an unresolved dispute to receive a decision. Merely recording that a case is pending can leave everyone except the person waiting relieved of the need to act.

For the reviewer, a right to hesitate means having enough time and authority to challenge a claim before approving its use. For the person represented in that claim, it means being able to make an objection consequential: to correct the record, expose a missing

qualification, or require an answer. These rights can come into tension. The institution cannot settle that tension by giving itself unlimited time while making the other person's opportunity to object expire.

An organization cannot confer this right through a policy while arranging its work so that exercising it brings punishment. If approval counts as productivity and a justified objection counts only as delay, reviewers must choose between the official duty to check and the practical demand to finish. The distribution of time, authority, and credit belongs inside any serious account of human oversight.

The wager of this book is that preserving these conditions of judgment is a political task. People need ways to interrupt the passage from a representation of their lives to a decision about them. A system that can explain how it reached an answer still owes an account of why that answer warrants this action, now, with these consequences. That account must remain answerable to someone beyond the process that produced it.

Return once more to the witness. Her uncertainty was inconvenient, but it was also information. It marked the boundary of what she could say. A responsible system would let that boundary travel with her words until there was a reason to move it. And the person asking for a decision would be entitled to know what remained unresolved and what would happen next.

The word "before" should remain unavailable until someone can account for it.

## Author's Note

A completed five-opinion exploratory legal pilot accompanies this chapter.
The Reality Ledger reference architecture develops its practical form.
Pilot and architecture: https://christosbirkitt.com/.
The pilot's findings are limited to the evaluated material.

## Source Notes

**1.** Slavoj Žižek, *The Sublime Object of Ideology* (London: Verso, 2009), on cynical ideology; and Slavoj Žižek and John Milbank, *The Monstrosity of Christ*: Paradox or Dialectic?, ed. Creston Davis (Cambridge, MA: MIT Press, 2009), 60. The latter concerns the shared presupposition through which a symbolic cause exists.

**2.** Friedrich Nietzsche, “On Truth and Lying in a Non-Moral Sense,” in The Birth of Tragedy and Other Writings, ed. Raymond Geuss and Ronald Speirs, trans. Ronald Speirs (Cambridge: Cambridge University Press, 1999), 146. The worn-coins image concerns the forgetting of metaphor’s history.

**3.** Walter Benjamin, The Work of Art in the Age of Its Technological Reproducibility, and Other Writings on Media, ed. Michael W. Jennings, Brigid Doherty, and Thomas Y. Levin (Cambridge, MA: Belknap Press of Harvard University Press, 2008), especially the “Work of Art” essay; and Charles Baudelaire: A Lyric Poet in the Era of High Capitalism (London: Verso, 1983), 124. These provide distinct contexts for technologically mediated reception and the crowd in Baudelaire.

**4.** William Kentridge, “In Praise of Shadows,” in William Kentridge (Chicago: Museum of Contemporary Art, 2001), 151, 156–157, 159, 161. The discussion reverses the customary ascent from Plato’s cave and asks what shadow, projection, and delay make available to seeing.

**5.** Jacques Derrida, *Athens, Still Remains*: The Photographs of Jean-François Bonhomme, trans. Pascale-Anne Brault and Michael Naas (New York: Fordham University Press, 2010), 1, 4–5, 17, 29. The photographic interval and the responsibility attached to a sentence inform the account of delay here.

**6.** Anselm Haverkamp, *Shakespearean Genealogies of Power*: A Whispering of Nothing in *Hamlet*, Richard II, Julius Caesar, Macbeth, The Merchant of Venice, and The Winter’s Tale (London: Routledge, 2011), 30. His metaphor of debt to the dead concerns the persistence and possible negotiation of historical obligations.

**7.** Jacques Derrida, On Cosmopolitanism and Forgiveness (London: Routledge, 2001), 28, 32, 39, 53–54, especially Part Two, “On Forgiveness.” The passage considers the interval between knowledge and a responsible decision within its discussion of forgiveness.

**8.** Stanley Cavell, Disowning Knowledge: In Seven Plays of Shakespeare, updated ed. (Cambridge: Cambridge University Press, 2003), 181, in the discussion of *Hamlet*. The extension from skeptical knowledge and acknowledgment to the present argument is the author’s interpretation.